Syllabus

BERK *v.* CHOY ET AL.

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE THIRD CIRCUIT

No. 24–440. Argued October 6, 2025—Decided January 20, 2026

Delaware law provides that a plaintiff may not sue for medical malpractice unless a medical professional attests to the suit's merit in an "affidavit of merit" that "accompanie[s]" the plaintiff's complaint. Del. Code, Tit. 18, § 6853(a)(1). Petitioner Harold Berk sued Dr. Wilson Choy and Beebe Medical Center in federal court for medical malpractice under Delaware law, but failed to provide the affidavit required by § 6853. Berk argued that § 6853 is not enforceable in federal court because it is displaced by the Federal Rules of Civil Procedure. The District Court dismissed Berk's lawsuit for failure to comply with Delaware's affidavit law. The Third Circuit affirmed.

Held: Delaware's affidavit law does not apply in federal court. Pp. 191–200.

(a) When a plaintiff brings a state-law claim in federal court, the court faces a choice-of-law problem: whether to apply state or federal law. The Rules of Decision Act directs federal courts to apply state substantive law unless the Constitution, a treaty, or a statute otherwise requires or provides. 28 U. S. C. § 1652. The Rules Enabling Act, which authorizes the Supreme Court to adopt uniform rules of procedure for district courts, provides for the application of federal law. § 2072(a). So, when a valid Federal Rule of Civil Procedure is on point, it displaces contrary state law even if the state law would qualify as substantive under *Erie R. Co.* v. *Tompkins*, 304 U. S. 64. The analysis is straightforward: The Court first asks whether a Federal Rule answers the disputed question. If a Federal Rule does, it governs, unless it "exceeds statutory authorization or Congress's rulemaking power." *Shady Grove Orthopedic Associates, P. A.* v. *Allstate Ins. Co.*, 559 U. S. 393, 398. Pp. 191–192.

(b) Here, Rule 8 answers the disputed question whether Berk's lawsuit may be dismissed because his complaint was not accompanied by an affidavit. Rule 8 prescribes the information a plaintiff must present about the merits of his claim at the outset of litigation: "a short and plain statement of the claim showing that [he] is entitled to relief." Fed. Rule Civ. Proc. 8(a)(2). By requiring no more than a statement of the claim, Rule 8 establishes "implicitly, but with unmistakable clarity," *Hanna* v. *Plumer*, 380 U. S. 460, 470, that evidence of the claim is *not* required. Rule 12 reinforces the point by providing only one ground

Page Proof Pending Publication

for dismissal based on the merits—"failure to state a claim upon which relief can be granted," Rule 12(b)(6)—and prohibiting courts from considering "matters outside the pleadings" when evaluating whether a plaintiff has stated a claim, Rule 12(d). The court instead asks only whether the complaint's factual allegations, if taken as true, "state a claim to relief that is plausible on its face." *Bell Atlantic Corp.* v. *Twombly*, 550 U. S. 544, 570. Lower federal courts have sometimes tried to demand more information than Rule 8 requires for certain kinds of claims. This Court has consistently rejected such efforts. Delaware's law and Rule 8 thus give different answers to the question whether Berk's complaint can be dismissed as insufficient because it was unaccompanied by an affidavit.

Defendants offer a workaround: They rewrite Delaware's law. After defendants' edits, the Delaware law is no longer a pleading requirement but a free-floating evidentiary requirement that can serve as the basis for an early dismissal. But that requirement could not be enforced under the Federal Rules. Defendants concede that the absence of an affidavit is not grounds for dismissal under Rule 12(b)(6). And Rule 56 already prescribes the mechanism for putting a plaintiff to his proof: a motion for summary judgment.

Finally, defendants' argument that Rule 11's proviso concerning affidavits incorporates state affidavit laws like § 6853 fails because the proviso cannot be read to address affidavits from third parties. Pp. 192–198.

(c) Because Rule 8 and § 6853 answer the same question, Rule 8 governs so long as it is valid under the Rules Enabling Act, which requires that Federal Rules be procedural rather than substantive. 28 U. S. C. § 2072(b). Rule 8 is valid under the Rules Enabling Act because it "really regulates procedure." *Sibbach* v. *Wilson & Co.*, 312 U. S. 1, 14. Defendants argue that determining whether a Rule is valid under the Rules Enabling Act requires also asking whether *the displaced state law* is substantive, but "the substantive nature of [a state] law, or its substantive purpose, *makes no difference*" to the analysis of a Federal Rule's validity. *Shady Grove*, 559 U. S., at 409. Pp. 198–200.

Reversed and remanded.

BARRETT, J., delivered the opinion of the Court, in which ROBERTS, C. J., and THOMAS, ALITO, SOTOMAYOR, KAGAN, GORSUCH, and KAVANAUGH, JJ., joined. JACKSON, J., filed an opinion concurring in the judgment, *post*, p. 200.

Andrew T. Tutt argued the cause for petitioner. With him on the briefs were *R. Stanton Jones*, *Anthony J. Franze*, *Kolya D. Glick*, *Samuel I. Ferenc*, and *Dana Kagan McGinley*.

Frederick R. Yarger argued the cause for respondent Wilson C. Choy, M.D. With him on the brief were *Michael L. O'Donnell*, *Kevin D. Homiak*, *William P. Sowers*, *Rebecca Graves Payne*, *John A. Elzufon*, and *Nathan V. Gin*. *Sarah E. Harrington* filed a brief for respondent Beebe Medical Center, Inc. With her on the brief were *David M. Zionts*, *Kendall T. Burchard*, and *John J. Hare*.*

JUSTICE BARRETT delivered the opinion of the Court.

The cost of malpractice insurance for doctors and hospitals has significantly increased in some areas of the country. In response, several States have imposed a screening mechanism on malpractice suits, requiring plaintiffs to submit an affidavit from a medical professional attesting to the suit's

---

*Briefs of *amici curiae* urging reversal were filed for the American Association for Justice by *Robert S. Peck* and *Jeffrey R. White*; for Civil Procedure Professors by *Alan B. Morrison*; for Public Justice by *John J. Korzen* and *Leah M. Nicholls*; and for the Hon. Mark W. Bennett et al. by *D. Chanslor Gallenstein*.

Page Proof Pending Publication

Briefs of *amici curiae* urging affirmance were filed for the State of Tennessee et al. by *Jonathan Skrmetti*, Attorney General of Tennessee, *J. Matthew Rice*, Solicitor General, and *Harrison Gray Kilgore*, Senior Assistant Attorney General, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Tim Griffin* of Arkansas, *Philip J. Weiser* of Colorado, *James Uthmeier* of Florida, *Chris Carr* of Georgia, *Raúl Labrador* of Idaho, *Theodore E. Rokita* of Indiana, *Brenna Bird* of Iowa, *Kris W. Kobach* of Kansas, *Russell Coleman* of Kentucky, *Liz Murrill* of Louisiana, *Keith Ellison* of Minnesota, *Lynn Fitch* of Mississippi, *Andrew Bailey* of Missouri, *Michael T. Hilgers* of Nebraska, *Matthew J. Platkin* of New Jersey, *Drew H. Wrigley* of North Dakota, *Dave Yost* of Ohio, *David W. Sunday, Jr.*, of Pennsylvania, *Alan Wilson* of South Carolina, *Marty Jackley* of South Dakota, *Ken Paxton* of Texas, *Derek Brown* of Utah, *Charity R. Clark* of Vermont, *Jason Miyares* of Virginia, and *John B. McCuskey* of West Virginia; for the American Hospital Association et al. by *Colleen E. Roh Sinzdak*; for the American Medical Association et al. by *Jack R. Bierig*; for the DRI Center for Law and Public Policy by *Hillary A. Taylor*; for Insurance Companies et al. by *Kendra N. Beckwith* and *Michael D. Miller*; and for Michael T. Morley by *Richard A. Simpson* and *F. Andrew Hessick*.